

Liability Determination Standard (LDS)

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Canonical Definition

The Liability Determination Standard (LDS) governs how sufficiently established Liability Context, Liability Object, Liability Basis, Liability Relationships, Liability Conditions, and Liability-Relevant Connections are brought together, evaluated, reasoned over, and transformed into an explicit governed Liability Determination State.

LDS governs the methodological transition from potential Liability to a governed determination of whether Liability attaches under the applicable governed structure.

It establishes the conditions under which Liability may be determined to:

attach, not attach, remain partially determined, remain pending, remain unknown, remain uncertain, or remain disputed.

LDS does not determine jurisdiction-specific legal Liability and does not replace courts, regulators, arbitrators, insurers, contractual authorities, or other competent decision-makers.

It provides the methodological governance structure through which Liability Determination can be made explicit, traceable, bounded, reasoned, reconstructable, and suitable for subsequent Liability Scope & Allocation governance.

Potential Liability ≠ Attached Liability.

Operational Role

The operational role of LDS is:

to determine whether Liability can legitimately attach to a governed Liability Subject or Liability Relationship on the established Liability Basis after the required Conditions and Liability-Relevant Connections have been sufficiently governed.

The preceding LIGA™ standards establish:

the context, the governed matter, the potential basis, the participating Subjects and Relationships, the applicable Conditions, and the Liability-Relevant Connection structure.

LDS evaluates those governed inputs together.

Its function is not merely to repeat them.

Its function is to determine what they establish for Liability.

Core Question

Can Liability legitimately attach and be determined to exist on the established governed basis?

Position in the LIGA™ Governance Flow

The canonical LIGA™ Governance Flow is:

Liability Context → Liability Object → Liability Basis → Liability Relationships → Liability Conditions → Liability Connection → Liability Determination → Liability Scope & Allocation → Liability State & Change → Liability Transfer & Recourse → Liability Resolution & Discharge → Liability Continuity & Finality LDS governs:

Liability Determination

It begins after a sufficiently governed Liability Connection Structure exists.

It ends when an explicit Liability Determination State is sufficiently established for Liability Scope & Allocation governance.

Canonical Transition

The canonical LDS transition is:

Governed Liability Connection Structure → Determination Input Formation → Determination Evaluation → Liability Attachment Assessment → Determination State → Determination Rationale & Record → Governed

Liability Determination State

Principal Input

The principal immediate input to LDS is:

Governed Liability Connection Structure

LDS may also reference the complete governed upstream structure necessary for Determination, including:

Governed Liability Context, Governed Liability Object, Governed Liability Basis, Governed Liability Relationship Structure, Governed Liability Condition Structure, and associated governed external inputs.

Principal Output

The principal output of LDS is:

Governed Liability Determination State

This output establishes the governed state of Liability for the defined:

Subject, Relationship, Object, Basis, Conditions, Connection, and lifecycle moment.

Foundational Principle

Liability does not arise from consequence alone; it arises from the governed relationship between basis, subject, conditions, connection, and determination.

LDS is the governance space in which those elements are evaluated together.

Potential Liability

Potential Liability exists where the upstream governance structure provides sufficient reason for Liability to be evaluated.

Potential Liability is not Attached Liability.

Therefore:

Potential Liability ≠ Liability Determination.

Liability Attachment

Liability Attachment is the governed determination that Liability has become sufficiently established in relation to the applicable Subject or Relationship under the defined Liability Basis and governed inputs.

Attachment is not presumed merely because the inquiry reached LDS.

Attachment and Determination

Attachment is governed within LDS rather than as a separate Parent Standard.

The canonical progression is:

Potential Liability → Qualified Determination Inputs → Determination Evaluation → Liability Attachment Determination
→ Liability Determination State

Liability Basis and Attachment

A Governed Liability Basis establishes why Liability may potentially exist.

It does not establish that Liability has attached.

Therefore:

Liability Basis ≠ Liability Attachment.

Conditions and Attachment

Satisfied Liability Conditions may be necessary for Attachment.

They do not independently establish Attachment.

Therefore:

Satisfied Liability Conditions ≠ Liability Attachment.

Connection and Attachment

A Qualified Liability Connection may be necessary for Determination.

It does not independently establish Liability.

Therefore:

Qualified Liability Connection ≠ Liability Attachment.

Harm and Attachment

Harm may be relevant under some Liability Bases.

Established Harm does not independently establish Liability Attachment.

Therefore:

Established Harm ≠ Liability Attachment.

Fault and Attachment

Fault may be relevant under some Liability Bases and irrelevant under others.

Therefore:

Fault ≠ Liability by definition.

and:

Absence of Fault ≠ Absence of Liability by default.

Breach and Attachment

A Breach may become a Determination input where relevant to the applicable Liability Basis.

But:

Breach ≠ Liability by itself.

Responsibility and Attachment

Responsibility may be relevant to Liability Determination.

AGA™ retains governance ownership of Responsibility.

Therefore:

Responsibility $\neq$ Liability.

Accountability and Attachment

Accountability may become a Determination input.

It does not independently establish Liability.

Therefore:

Accountability $\neq$ Liability.

Control and Attachment

Control may be relevant under the applicable Basis.

However:

Control $\neq$ Liability by itself.

Ownership and Attachment

Ownership may be relevant to some Liability structures.

However:

Ownership $\neq$ Liability by itself.

Payment and Attachment

Payment may occur before, during, or after Liability Determination.

Payment does not automatically establish Liability.

Therefore:

Payment $\neq$ Admission of Liability.

Settlement and Attachment

Settlement may resolve a matter without constituting an admission or methodological determination of Liability.

Therefore:

Settlement $\neq$ Admission of Liability.

Claim and Determination

A Claim may request, allege, or assert Liability.

A Claim is not Liability.

Therefore:

Claim $\neq$ Liability.

Claim Acceptance

Acceptance of a Claim by an operational, insurance, contractual, administrative, or other process does not automatically equal Liability Determination.

Therefore:

Claim Acceptance $\neq$ Liability Determination.

Claim Rejection

Rejection of a Claim does not establish the absence of Liability.

Therefore:

Claim Rejection $\neq$ Absence of Liability.

Claim Payment

Claim Payment may occur for reasons distinct from Liability Determination.

Therefore:

Claim Payment $\neq$ Liability Admission.

Determination Object

Every Liability Determination should identify what exactly is being determined.

The Determination Object should preserve the relevant combination of:

Liability Subject, Liability Relationship, Governed Liability Object, Liability Basis, applicable Conditions, and Liability Connection.

Determination Scope

LDS should define the scope of the Determination before evaluating the outcome.

The scope may be limited to:

one Subject, one Relationship, one Object, one Basis, one Connection, one lifecycle period, or another explicitly bounded inquiry.

Scope of Determination vs Liability Scope

The scope of the Determination inquiry is not the same as the substantive Scope of established Liability.

The latter belongs to LSAS.

Therefore:

Determination Scope $\neq$ Liability Scope.

Determination Input Formation

LDS should form an explicit Determination Input Set before evaluating Attachment.

Inputs should remain individually traceable.

The existence of many inputs should not be substituted for their relevance.

Determination Input Categories

Determination inputs may include:

Liability Context, Liability Object, Liability Basis, Liability Subjects, Liability Relationships, Liability Conditions, Liability Connection Structure, governed Harm states, Operational Reality, Responsibility states, Accountability states, Authority states, Identity states, validated inputs, evidence references, and other materially relevant governed states.

Input Ownership

An input does not become owned by LDS merely because it participates in Determination.

Its originating governance architecture retains ownership of its own domain.

Input Sufficiency

The Determination Input Set should be sufficiently complete for the defined Determination question.

Therefore:

Input Sufficiency $\neq$ Information Exhaustiveness.

Missing Determination Input

A material missing input may prevent Determination.

The correct state may be:

Pending, Unknown, Uncertain, or another governed non-final state.

Missing input should not be silently inferred.

Conflicting Determination Inputs

Inputs may conflict.

LDS should preserve material conflict rather than manufacture consistency.

Therefore:

Input Conflict $\neq$ Authority to Select Preferred Input.

Determination Evaluation

Determination Evaluation applies the applicable governed Basis and Conditions to the defined Subjects, Relationships, Object, Connection Structure, and other relevant inputs.

The evaluation should be:

bounded, traceable, reproducible, and explainable.

Evaluation Logic

Evaluation logic should identify:

what is being tested, which Basis applies, which Conditions apply, which Subject or Relationship is evaluated, which Connection is relied upon, which uncertainties remain, and how the Determination State follows.

No Outcome-First Determination

LDS prohibits selecting the desired Liability conclusion first and constructing the evaluation backward.

Therefore:

Desired Liability Outcome $\neq$ Valid Determination Method.

No Harm Shortcut

The existence or severity of Harm must not replace Liability Determination.

Therefore:

Harm $\rightarrow$ Liability is not a valid methodological shortcut.

No Causation Shortcut

Operational causation does not automatically establish Liability.

Therefore:

Operational Causation $\rightarrow$ Liability is not a valid methodological shortcut.

No Fault Shortcut

Where Fault is relevant, it remains one governed input.

Therefore:

Fault $\rightarrow$ Liability is not universally valid.

No Breach Shortcut

A Breach does not automatically establish every required Liability element.

Therefore:

Breach $\rightarrow$ Liability is not a valid universal shortcut.

No Responsibility Shortcut

Responsibility does not automatically become Liability.

Therefore:

Responsibility → Liability is not a valid methodological shortcut.

No Accountability Shortcut

Accountability does not automatically become Liability.

Therefore:

Accountability → Liability is not a valid methodological shortcut.

No Control Shortcut

Control does not automatically become Liability.

Therefore:

Control → Liability is not a valid methodological shortcut.

No Relationship Shortcut

A Liability Relationship does not establish Liability merely because it exists.

Therefore:

Relationship → Liability is not a valid methodological shortcut.

No Evidence Shortcut

Evidence supports governed inputs.

Evidence does not independently become Liability.

Therefore:

Evidence → Liability is not a valid methodological shortcut.

No Claim Shortcut

A Claim does not establish Liability.

Therefore:

Claim → Liability is not a valid methodological shortcut.

Determination Criteria

The criteria used to determine Attachment should be explicit and derived from the applicable governed structure.

Criteria should not be invented after the outcome is known.

Determination Criteria Integrity

Determination criteria should remain:

Basis-specific, Condition-specific, Subject-specific where required, Object-specific where required, and Connection-specific where required.

Basis-Specific Determination

The same matter may produce different Determination States under different Liability Bases.

Therefore:

Liability Determination under Basis A ≠ Liability Determination under Basis B.

Subject-Specific Determination

Different Subjects may receive different Determination States within the same matter.

Therefore:

Shared Event ≠ Shared Liability Determination.

Relationship-Specific Determination

A Subject may participate in several Liability Relationships.

Liability may attach under one Relationship and not another.

Therefore:

One Subject ≠ One Universal Liability Determination.

Object-Specific Determination

A Subject may have different Liability Determinations in relation to different Liability Objects.

Therefore:

Liability for Object A ≠ Liability for Object B.

Connection-Specific Determination

Different Qualified Liability Connections may support different Determination States.

Therefore:

One Matter ≠ One Universal Connection Determination.

Multi-Basis Determination

Several Liability Bases may coexist.

Each should remain independently governable where materially distinct.

A positive Determination under one Basis does not automatically determine another.

Multi-Subject Determination

A Liability Network may contain several Subjects.

Each Subject should be evaluated according to its own governed:

Basis, Relationships, Conditions, Connections, and relevant inputs.

Multi-Relationship Determination

One Subject may possess several materially distinct Liability Relationships.

Each Relationship may require a separate Attachment evaluation.

Liability Network Determination

A complex matter may produce a network of distinct Liability Determinations rather than one universal conclusion.

Therefore:

One occurrence may generate multiple Liability Relationships and multiple Liability Determination States.

Local Determination

A Determination may apply only to one local portion of a broader Liability Network.

Therefore:

Local Liability Determination ≠ Complete Liability Network Determination.

Determination State

LDS should produce an explicit Determination State rather than leaving the result as an implied narrative.

The Determination State should identify what has and has not been established.

Canonical Determination States

LDS may represent states including:

Attached

Not Attached

Partially Determined

Pending

Unknown

Uncertain

Disputed

These states should remain methodologically distinct.

Attached

Attached means the applicable governed Determination requirements are sufficiently satisfied for Liability to be represented as attached within the defined Determination scope.

Attached does not determine Liability Scope or Allocation.

Not Attached

Not Attached means Liability does not attach within the defined Determination scope under the applicable governed Basis and evaluated inputs.

It does not necessarily mean Liability cannot attach under another Basis or Relationship.

Partially Determined

Partially Determined may be used where part of the defined Liability Determination can be established while material aspects remain unresolved.

Therefore:

Partially Determined $\neq$ Partially Allocated.

Allocation belongs downstream.

Pending

Pending means Determination cannot yet be completed because a material governed input, process, or dependency remains unresolved.

Therefore:

Pending $\neq$ Attached.

and:

Pending $\neq$ Not Attached.

Unknown

Unknown means the available governed structure is insufficient to determine the Liability state.

Therefore:

Unknown $\neq$ Not Attached.

Uncertain

Uncertain means a Determination can be represented but material uncertainty remains regarding its state or supporting structure.

Therefore:

Uncertain $\neq$ Unknown.

Disputed

Disputed means materially competing governed Determination representations remain unresolved.

Therefore:

Disputed $\neq$ Unknown.

and:

Disputed $\neq$ Attached by default.

Determination Confidence

Where methodology permits, LDS may represent confidence concerning the Determination process.

Such confidence must not be confused with jurisdiction-specific probability of legal success.

Therefore:

Determination Confidence $\neq$ Legal Outcome Probability.

Attachment State and Liability State

Attachment is the initial governed determination that Liability exists within the defined structure.

Subsequent Liability State governance belongs to LSCS.

Therefore:

Liability Attachment State $\neq$ Complete Liability Lifecycle State.

Attachment and Scope

Attachment establishes whether Liability exists.

It does not establish the full extent of that Liability.

Therefore:

Liability Attachment $\neq$ Liability Scope.

Attachment and Allocation

Attachment does not determine how Liability is distributed among multiple Subjects or Relationships.

Therefore:

Liability Attachment $\neq$ Liability Allocation.

Determination and Scope

LDS answers whether Liability attaches.

LSAS subsequently answers:

for what, to what extent, and how the Liability is allocated.

Therefore:

Liability Determination $\neq$ Liability Scope.

Determination and Allocation

A positive Liability Determination should not silently allocate Liability.

Therefore:

Liability Determination $\neq$ Liability Allocation.

Determination and Payment

A Determination does not itself mean payment has occurred or must be operationally executed.

Therefore:

Liability Determination $\neq$ Payment.

Determination and Resolution

A Determination does not resolve the Liability lifecycle.

Therefore:

Liability Determination $\neq$ Liability Resolution.

Determination and Finality

A Determination is not Finality.

Liability may continue through:

Scope, Allocation, State changes, Transfer, Recourse, Resolution, Discharge, Continuity, and Finality.

Therefore:

Liability Determination $\neq$ Liability Lifecycle Completion.

Determination Rationale

Every material Determination State should possess a sufficiently explicit rationale.

The rationale should identify:

the applicable Basis, relevant Subjects and Relationships, Object, Conditions, Connection structure, material inputs, evaluation logic, uncertainties, and resulting Determination State.

Rationale and Outcome

A Determination outcome without a reconstructable rationale is methodologically weak.

Therefore:

Determination State without Rationale $\neq$ Fully Governed Determination.

Determination Traceability

The Determination should be traceable to its upstream governance structure.

Traceability should allow reconstruction from:

Determination State

back through:

Connection, Conditions, Relationships, Basis, Object, and Context.

Determination Reproducibility

A governed Determination should preserve enough information for another qualified implementation to understand how the result was produced.

This does not require all authorities to reach identical jurisdiction-specific conclusions.

Determination Explainability

The architecture should support explanation of:

what was determined, under what Basis, for which Subject, in relation to which Object, using which Conditions and Connections, and with what unresolved uncertainty.

Determination Record

A material Determination should produce a durable governed record.

The record should preserve:

Determination identity, scope, state, rationale, inputs, time, version, and provenance.

Determination Identity

Each materially distinct Determination should possess a stable identity sufficient for:

reference, versioning, change, reassessment, scope governance, allocation, and historical reconstruction.

Determination Time

The Determination should identify the relevant time at which the governed state applies.

The time of Determination may differ from:

event time, Liability formation time, Attachment-effective time, or record creation time.

Determination Time vs Attachment Time

Where materially different, the system should distinguish:

Determination Time

from:

Attachment-Effective Time

Therefore:

Time of Determination $\neq$ Time Liability Became Effective by default.

Retrospective Determination

A later Determination may establish that Liability attached at an earlier governed time.

The architecture should preserve both times.

Prospective Determination

Where a competent methodology permits a prospective determination state, the prospective nature and assumptions should remain explicit.

Prospective Determination must not be represented as an already realized historical state.

Determination Change

A Determination State may later change because:

new information appears, upstream governance changes, a Connection is corrected, a Condition is reassessed, or a competent process changes the applicable determination.

Change should remain traceable.

Determination Correction

A Determination may be corrected where the earlier state was incorrectly represented.

Correction should preserve:

the earlier state, corrected state, reason, time, and provenance.

Therefore:

Determination Correction $\neq$ Historical Erasure.

Determination Reassessment

A Determination may require reassessment without implying that the earlier Determination was invalid when made.

Therefore:

Determination Reassessment $\neq$ Determination Correction.

Determination Versioning

Material changes should produce explicit version continuity.

Therefore:

New Determination Version $\neq$ New Liability Origin by default.

Superseded Determination

A later Determination may supersede an earlier Determination.

The earlier state should remain historically reconstructable.

Therefore:

Determination Supersession $\neq$ Historical Deletion.

Determination Reversal

A later governed process may reverse an earlier Determination.

The architecture should preserve both states and the transition between them.

Therefore:

Determination Reversal $\neq$ Erasure of Prior Determination.

Determination Re-Entry

Later LIGA™ stages may reveal that LDS must be revisited.

Re-entry should preserve the historical lifecycle.

Therefore:

Determination Re-Entry $\neq$ New Liability Origin by default.

Upstream Re-Entry

LDS may discover that a Determination cannot be governed reliably because an upstream structure is defective.

The process should return to the earliest materially affected space.

Examples:

incorrect Connection $\rightarrow$ LCNS; incorrect Condition $\rightarrow$ LCOS; incorrect Relationship $\rightarrow$ LRS; incorrect Basis $\rightarrow$ LBS;
incorrect Object $\rightarrow$ LOS; incorrect Context $\rightarrow$ LCS.

Re-Entry Principle

LDS should not compensate for upstream governance defects by manufacturing a Determination.

The canonical principle is:

Re-enter the earliest materially affected governance space.

Historical Integrity

Determination governance should preserve the difference between:

what occurred, what was known, what was determined, and what was later corrected or reassessed.

Therefore:

Current Determination State $\neq$ Complete Determination History.

Later Knowledge

Later knowledge may change the current Determination without changing what was reasonably knowable at an earlier lifecycle moment.

Therefore:

Later Knowledge $\neq$ Earlier Knowledge.

Determination Reality, Knowledge, and Record

The architecture should distinguish:

Liability Reality

Liability Knowledge

Liability Determination

Liability Determination Record

These may converge, but they should not be treated as identical by default.

External Determination

A court, regulator, arbitrator, insurer, contractual authority, or another competent body may produce an external Liability determination.

LDS may represent such a determination as a governed external input or authority state where appropriate.

LDS does not replace that authority.

Methodological Determination

An LDS Determination is a methodological governance determination within LIGA™.

It should not be represented as a jurisdiction-specific legal judgment unless issued by an authority empowered to make such a judgment.

Therefore:

LIGA™ Determination $\neq$ Court Judgment.

Multiple Determination Authorities

Different competent authorities may produce different determinations concerning the same matter.

LDS should preserve:

authority identity, scope, jurisdiction or governance domain, time, and relationship among those determinations.

Conflicting Determinations

Where competent determinations conflict, LDS should preserve the conflict rather than silently collapsing the outcomes.

Therefore:

Conflicting Determinations $\neq$ Authority to Invent a Unified Determination.

Determination Authority

Every external authoritative Determination should preserve the identity and scope of the authority that issued it.

Authority should not be inferred merely from the existence of a decision-like document.

Automated Determination

An automated or AI-assisted system may participate in methodological Determination where appropriately governed.

The system should preserve:

methodology, inputs, authority, human or institutional oversight where applicable, version, and rationale.

AI Output and Liability

An AI-generated Liability conclusion is not a governed Determination merely because it is produced confidently.

Therefore:

AI Output $\neq$ Governed Liability Determination.

Human Determination

A human conclusion is not automatically governed merely because a human produced it.

Therefore:

Human Judgment $\neq$ Governed Liability Determination by default.

Governance depends on methodology, inputs, authority, traceability, and rationale.

Determination Bias Control

LDS should reduce outcome-driven distortions including:

hindsight bias, outcome bias, severity bias, authority bias, automation bias, visibility bias, and narrative completion bias.

These should be treated as governance risks where materially relevant.

Hindsight Bias

Knowledge of the eventual outcome should not be projected backward as though it had been available at the earlier lifecycle moment.

Therefore:

Known Outcome at T2 $\neq$ Knowledge Available at T1.

Severity Bias

Severe consequences may increase the importance of the inquiry.

They do not automatically increase Liability Attachment.

Therefore:

Greater Harm $\neq$ Greater Attachment Certainty.

Visibility Bias

A more visible Subject should not receive Liability merely because it is easier to identify or evaluate.

Therefore:

Subject Visibility $\neq$ Liability Attachment.

Financial-Capacity Bias

Ability to pay should not determine whether Liability attaches.

Therefore:

Financial Capacity $\neq$ Liability Attachment.

Insurance Bias

The existence of insurance does not determine whether primary Liability attaches.

Therefore:

Insurance Coverage $\neq$ Liability Attachment.

Insurance-related consequences may become relevant later in Transfer & Recourse governance.

Determination Sufficiency

A Determination is sufficiently governed when:

the Determination Object is explicit, the scope is bounded, the applicable Basis is known, relevant Subjects and Relationships are explicit, Conditions are governed, Connections are sufficiently governed, material inputs are traceable, evaluation logic is explicit, uncertainties and conflicts are preserved, the Determination State is explicit, and the rationale is reconstructable.

Determination Sufficiency and Finality

A sufficiently governed Determination is ready for downstream Liability Scope & Allocation governance.

It is not a final Liability lifecycle state.

Therefore:

Determination Sufficiency $\neq$ Liability Finality.

Governance Requirements

A conforming LDS implementation should ensure that:

Liability is not presumed before Determination; Attachment is explicit; Determination scope is bounded; applicable Liability Basis is identified; relevant Conditions are referenced; relevant Connection Structure is referenced; Subject-specific distinctions are preserved; Relationship-specific distinctions are preserved; Object-specific distinctions are preserved; multi-Basis Determinations remain distinguishable; conflicting inputs remain visible; uncertainty remains explicit; Determination criteria are traceable; Determination rationale is reconstructable; Determination history is preserved; and downstream Scope & Allocation is not performed prematurely.

Governance Logic

The canonical LDS governance logic is:

Governed Liability Connection Structure

↓

Define Determination Object

↓

Define Determination Scope

↓

Form Determination Input Set

↓

Identify Applicable Liability Basis

↓

Identify Relevant Subjects & Relationships

↓

Reference Governed Liability Conditions

↓

Reference Governed Liability Connection Structure

↓

Assess Input Sufficiency

↓

Preserve Missing / Conflicting / Uncertain Inputs



Apply Determination Criteria



Evaluate Liability Attachment



Assign Liability Determination State



Record Determination Rationale



Preserve Determination Authority / Time / Provenance



Assess Determination Sufficiency



Governed Liability Determination State



Handoff to Liability Scope & Allocation Governance

Governance Outputs

LDS may produce:

Liability Determination Object

Liability Determination Scope

Liability Determination Input Set

Determination Criteria Set

Attachment Assessment

Attached Liability State

Not Attached Liability State

Partially Determined Liability State

Pending Liability Determination State

Unknown Liability Determination State

Uncertain Liability Determination State

Disputed Liability Determination State

Determination Rationale

Determination Trace Record

Determination Authority Reference

Determination Time Record

Attachment-Effective Time Record

Determination Conflict Record

Determination Correction Record

Determination Reassessment Record

Determination Version Record

Historical Determination Record

Determination Sufficiency State

The principal output is:

Governed Liability Determination State

Critical Distinctions

LDS preserves the following distinctions:

Potential Liability ≠ Attached Liability Potential Liability ≠ Liability Determination Liability Basis ≠ Liability Attachment
Satisfied Liability Conditions ≠ Liability Attachment Qualified Liability Connection ≠ Liability Attachment Established
Harm ≠ Liability Attachment Fault ≠ Liability by definition Absence of Fault ≠ Absence of Liability by default Breach ≠
Liability by itself Responsibility ≠ Liability Accountability ≠ Liability Control ≠ Liability by itself Ownership ≠ Liability by
itself Payment ≠ Admission of Liability Settlement ≠ Admission of Liability Claim ≠ Liability Claim Acceptance ≠ Liability
Determination Claim Rejection ≠ Absence of Liability Claim Payment ≠ Liability Admission Determination Scope ≠
Liability Scope Input Sufficiency ≠ Information Exhaustiveness Desired Liability Outcome ≠ Valid Determination
Method Liability Determination under Basis A ≠ Liability Determination under Basis B Shared Event ≠ Shared Liability
Determination One Subject ≠ One Universal Liability Determination Liability for Object A ≠ Liability for Object B One
Matter ≠ One Universal Connection Determination Local Liability Determination ≠ Complete Liability Network
Determination Partially Determined ≠ Partially Allocated Pending ≠ Attached Pending ≠ Not Attached Unknown ≠ Not
Attached Uncertain ≠ Unknown Disputed ≠ Unknown Determination Confidence ≠ Legal Outcome Probability Liability
Attachment State ≠ Complete Liability Lifecycle State Liability Attachment ≠ Liability Scope Liability Attachment ≠
Liability Allocation Liability Determination ≠ Liability Scope Liability Determination ≠ Liability Allocation Liability
Determination ≠ Payment Liability Determination ≠ Liability Resolution Liability Determination ≠ Liability Lifecycle
Completion Determination State without Rationale ≠ Fully Governed Determination Time of Determination ≠ Time
Liability Became Effective by default Determination Correction ≠ Historical Erasure Determination Reassessment ≠
Determination Correction New Determination Version ≠ New Liability Origin by default Determination Supersession ≠
Historical Deletion Determination Reversal ≠ Erasure of Prior Determination Determination Re-Entry ≠ New Liability
Origin by default Current Determination State ≠ Complete Determination History Later Knowledge ≠ Earlier Knowledge
LIGA™ Determination ≠ Court Judgment Conflicting Determinations ≠ Authority to Invent a Unified Determination AI
Output ≠ Governed Liability Determination Human Judgment ≠ Governed Liability Determination by default Known
Outcome at T2 ≠ Knowledge Available at T1 Greater Harm ≠ Greater Attachment Certainty Subject Visibility ≠ Liability
Attachment Financial Capacity ≠ Liability Attachment Insurance Coverage ≠ Liability Attachment Determination
Sufficiency ≠ Liability Finality

Cross-Architecture Relationship

LDS may rely upon governed inputs from multiple OOF® architectures while retaining a strict Liability boundary.

ORA™ — Operational Reality Architecture may establish what occurred operationally.

HAGA™ — Harm Governance Architecture may establish whether Harm exists and how it developed.

AGA™ — Accountability Governance Architecture may establish Responsibility, Accountability, Authority, and Attribution states.

GOA™ — Governance Architecture may establish Authority, Scope, Delegation, Accountability, and other governance structures.

ADIT® — Continuous Audit & Evidence Governance Architecture may govern evidence and auditability.

VALIDOS™ — Validation Governance Architecture may govern validation states.

OBIDENTITY® — Origin-Bound Identity Governance Architecture may govern Identity, Ownership, Authority, Permission, Provenance, Transfer, and Continuity.

AIG® and ASGA™ may provide AI and autonomous-system governance states.

PGA™ may provide governed Prediction states.

SIMULOS® may provide governed Simulation outputs.

LDS does not re-determine those external governance objects.

It determines only what the complete governed Liability structure establishes for Liability Attachment and Determination.

Cross-Architecture Boundary Principle

The canonical LDS interoperability principle is:

An externally governed fact, state, relationship, determination, or evidentiary object may become an input to Liability Determination without transferring governance ownership of its original domain to LIGA™.

Therefore:

Operational Reality ≠ Liability Determination Harm Determination ≠ Liability Determination Accountability Attribution ≠ Liability Determination Validation Determination ≠ Liability Determination Evidence Determination ≠ Liability Determination Identity Determination ≠ Liability Determination Prediction Failure ≠ Liability Determination Simulation Output ≠ Liability Determination

Canonical Boundary

LDS begins when a sufficiently governed:

Governed Liability Connection Structure

exists and the upstream LIGA™ structures are sufficient for Liability evaluation.

LDS governs:

Determination Object, Determination Scope, Determination Inputs, Determination Criteria, Determination Evaluation, Liability Attachment, Determination States, Determination Rationale, Determination Traceability, Determination Authority, Determination Timing, Determination Conflict, Determination Uncertainty, Determination Change, Correction, Reassessment, Versioning, Supersession, Reversal, Re-Entry, Historical Integrity, and Determination Sufficiency.

LDS does not govern:

jurisdiction-specific legal adjudication, Liability Scope, Liability Allocation, ongoing Liability State & Change, Liability Transfer, Liability Sharing, Recourse, Liability Resolution, Discharge, Liability Continuity, or Liability Finality.

LDS ends when a:

Governed Liability Determination State

is sufficiently established for Liability Scope & Allocation governance.

Architecture Handoff

The canonical handoff is:

Governed Liability Determination State → Liability Scope & Allocation Governance The next governance questions become:

For what does the established Liability apply?

To what extent does it apply?

How is that Liability distributed where multiple Liability relationships exist?

These questions belong to:

LSAS — Liability Scope & Allocation Standard.

Canonical Closing Statement

The existence of Harm, loss, damage, breach, fault, responsibility, accountability, control, evidence, a Claim, or even a qualified Liability Connection does not by itself complete Liability Determination.

Liability must be determined through an explicit governed evaluation of the applicable Basis, Subjects, Relationships, Conditions, Connection Structure, and materially relevant inputs.

LDS is the point at which potential Liability may become Attached Liability.

But Attachment is not Scope.

Attachment is not Allocation.

Attachment is not Resolution.

Attachment is not Finality.

Potential Liability becomes governed Liability only through Determination.

Determine whether Liability attaches before determining how far it extends or how it is allocated.

Internal Module Flow

LDIM — Liability Determination Input Module

LDEM — Liability Determination Evaluation Module

LDAM — Liability Determination & Attachment Module

LDRM — Liability Determination Rationale Module

LDVM — Liability Determination Versioning Module

Related Documents

About Liability Determination Standard (LDS)

LIGA™ Architecture Map

LIGA™ Liability Governance Architecture — Liability Governance Layer

LIGA™ Complete Standards & Modules Index

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